

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MAY 19, 2026
AMENDED**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**HERNANDEZ and HERNANDEZ v. SAHAJANAND INVESTMENT, LLC, et al.
Case No. cu23-04949**

Motion by Plaintiffs for Final Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Plaintiffs are to cite to evidence that the settlement amount and proposed allocation to PAGA claims was provided to the LWDA, and LWDA given a reasonable opportunity to object. Plaintiffs are also to explain why they have proposed that any unclaimed/uncashed amount after distribution be paid to Legal Aid of Marin, instead of a charitable organization in Solano County. Plaintiffs' counsel is also advised that the court intends to reduce the attorneys fees down to \$40,500.00 (27% of gross settlement), instead of the \$50,000 (one-third of gross settlement) requested.

**BARRAGAN v. KEHOE, et al.
Case No. CU25-09242 (consolidated with case CU25-09269)**

Motion by Attorney S. David Rosenthal to Be Relieved as Attorney of Record

TENTATIVE RULING